

Unit - V

Q) Write a note on Intellectual Property Rights?

A) Intellectual Property refers to the creations of the mind inventions, literary and artistic works, symbol, names and images used in commerce

→ The IPR include Patent, Copyright, Trademark, Trade Secret, Design & Geographical Indication

1) Patents

- An exclusive and absolute right granted to the owner or inventor of an invention to create, utilize, produce and market the invention is termed as Patent
- Only Product Patent and Process Patent is available
- Patent is an exclusive monopoly right granted by Government of India for an invention to the inventor
- Term of Patent :- 20 years from date of filing

Condition of Patentability

- Novelty
- Inventive Step or it must be non obvious
- Capable of Industrial application
- Not fall within the provision of Section 3 & 4 of Indian Patent Act 1970.

Section 3: List of inventions which are not patentable

- 1) Contrary to well established natural laws
- 2) Injurious to Public Health
- 3) Discovery of living things or Nonliving Things or substances in nature
- 4) Method of Agriculture or Horticulture

Section 4: Atomic Energy Related

2) Trademark

- Certain products or services are recognised as those manufactured or provided by a specific individual or business enterprise by means of an exclusive sign that sign is termed as Trademark
- It can be a word, a number, an alphabet or their combination

The basic features of a trademark are:-

- 1) Uniqueness
- 2) Non-Descriptive Name
- 3) Not a Geographical Name
- 4) Non-Deceptive

Maximum Protection: 20 years life long and renewal after 10 yrs

3) Copyright

→ A right available for developing an original work related to the fields of literature, art, music or drama is termed as Copyright

The work covered by Copyright include

- Literary works such as Novels, Poem, Plays and articles
- Film, musical composition, dance & theatrical production
- Artistic works such as paintings, drawing, photograph

Term of Copyright :- 60 years and no renewal required

4) Trade Secret

Any piece of information that is important with respect to the business and is not shared with the general public and which the business ^{man} tries to keep confidential or secret is termed as Trade Secret

Trade Secret main features are as follows :-

- 1) Can Cover Non-Patentable Data
- 2) Must be a Secret
- 3) Have Indefinite Duration
- 4) Can be Reverse Engineered

5) Geographical Indication

- Geographical Indication (GI) is a sign used on product that have specific geographical origin and possess qualities or a reputation that are due to origin.
- In order to function as a GI, a sign must identify a product as origination in a given place.

Important Convention

- 1) Paris Convention 1883 for Industrial Property
- 2) Berne Convention for the literary work & Copyright protection
- 3) Madrid Agreement 1891 for Trademark Protection

Q) Write about the objective, offences and penalties of Medical Termination ^{Pregnancy} Act?

A) The Act was mainly framed due to following reasons :-

- Legal abortions were difficult at that time (in case of Rape and Lunatic Pregnancy condition) & many were being carried out illegally under unhygienic or unsafe conditions resulting in Harm to Health or life of women
- As a population control measure since it provided for termination of unwanted pregnancy resulting from a failure of any device or methods used by the married couple or for limiting the number of children.

Registered Medical Practitioner means a person who possess any

- Registered medical qualification as defined under the Indian Medical Council Act
- Whose name has been entered in a State Medical Register
- Who has such experience or training in gynecology and obstetrics as may be prescribed by rules made under this act.

Termination of Pregnancy

- If the duration of pregnancy has upto 12 weeks or less then it can be terminated only with the suggestion of one medical practitioner for termination of pregnancy
- If the duration of pregnancy has exceeded 12 weeks but not 20 weeks, it can be terminated only if two medical practitioners suggested that termination is required due to complications

Requirement of experience or training for any RMP to terminate pregnancy

- He/she should have 6 month experience of House Surgery in Gynaecology and Obstetrics
- If he/she not done any such House surgery then should have work experience at any Hospital for atleast one year in gynaecology and obstetrics
- If he/she has assisted a RMP in the performance of Twenty Five cases of MTP in government approved places.
- Hold Post Graduate degree in Gynaecology and Obstetrics

Document of MTP

The prescribed forms for consent, opinion of RMPs etc used should be kept in a safe custody and sent in envelopes marked "SECRET" to the Hospital Head, owner of the approved place or the CMO of the State

Offences and Penalties

- As per the IPC code (45 of 1860); the termination of pregnancy by a person who is not a RMP shall be an offence punishable with rigorous imprisonment for a term which shall not be less than two years but which may extend to seven years
- If the termination of pregnancy is being carried out in non-authorised places then the individual who is doing termination shall be punishable with rigorous imprisonment for a term which shall not be less than two years which may extend to seven years
- Any person being owner of a place which being not approved shall be punishable with rigorous imprisonment for a term upto two years but which may extend to seven years

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is required due to complications

	MTP Act 1971	The MTP Amendment Act 2021
Indications (Contraceptive failure)	Only applies to married women	Unmarried women are also covered
Gestational Age Limit	<u>20 weeks</u> for all indications	<u>24 weeks</u> for <u>rape</u> survivors Beyond 24 weeks for substantial fetal abnormalities
Medical practitioner opinions required before termination	One RMP till <u>12</u> weeks Two RMPs till 20 weeks	One RMP till 20 weeks Two RMPs 20-24 weeks Medical Board approval after 24 weeks
Breach of the woman's confidentiality	Fine up to Rs 1000	Fine and/or Imprisonment of 1 year

Q) Discuss about Right to Information Act?

A) RTI Act 2005 provides a legal framework of citizens democratic right to access to information under the control of public authorities

→ To promote transparency and accountability in the functioning of every public authority

Need for RTI Act

→ Promotes openness, transparency and accountability in the working of every public authority (मनमानी)

→ Prevent administrative arbitrariness

→ Bridge the gap between providers and recipient of public service

→ Strengthen the foundations of democracy

Procedure for requesting information

→ Applying in writing or through electronic means in English or Hindi or in the official language of the area to the Public Information officer specifying the particulars of the information sought for

→ Reason for seeking information are not required to be given

Time limits to get the Information

- 30 days if application is filed with PIO
- 35 days in case it is filed with assistant
- 48 hours in case the matter to which the ^{PIO} information pertains affect the life and liberty of an individual

What if you don't get Information Requested?!

If you don't proper response or request information from public authority or PIO within 30 calendar days; you can file complaint with Information Commission or file an appeal with first appellate authority.

Where and How to file First Appeal?

- You will have to an appeal application to the first appellate authority is the senior officer of the PIO
- On receipt of your appeal, this appellate authority will call an explanation from PIO, might invite you to hear you and will an reasonable order within 30-45 days

Where and How to file Second Appeal ...?
If you are not satisfied with response of PIO and order passed on your appeal by first appellate authority of particular public authority; you can file second appeal with State Information Commissioner or Central Information Commissioner.

Exemption from Disclosure of Information

- National Security
- Sovereignty and Integrity of India
- Contempt of court
- Trade Secrecy
- Intellectual Property

Q) Enlist about the Pharmacist duty in relation to his job, trade and profession and write down about the Pharmacist oath?

A) Pharmacist in relation to his Job

- Pharmacy Premises should be registered and provide complete pharmacy services; should be well maintained
- The accidental contamination and errors should be avoided during dispensing, administering & Handling
- There should be a Pharmacist in every Pharmacy and activities should be done in his guidance
- Pharmacist should not reveal anything that physician does not want to disclose from patient which may cause anxiety to patient.
- Pharmacist should not add or remove any drug from prescription without approval of prescriber

Pharmacist in Relation to the Trade

- The pharmacist should charge a reasonable price for drugs which should not be a burden for consumers
- Any type of gift, prizes or any other attractive things should not be offered and also the Pharmacist should not lower the prices than charged by the other pharmacist in that area to capture the market

- Pharmacist should buy the drug only from registered dealers.
- The pharmacist should avoid every type of advertisement to increase his income.

Pharmacist in Relation to Medical Profession

- The pharmacist avoid Medical Practice like Prescribing diagnosis as Physician avoid Pharmacy Practices.
- The pharmacist should not make a secret agreement with physician to send patient to his store on commission.

Pharmacist in Relation to His Profession

- Pharmacist should be well educated ^{one} ~~is~~ should get pharmacy training before pharmacy practice.
- The pharmacist should has Knowledge about pharmacy acts and rules and should follow them.
- The pharmacist should join certain organization to educate and spread Health Related Information.

Pharmacist & Oath

- I swear by the Code of Ethics of Pharmacy Council of India in relation to the community and shall act as integral part of Health care team
- I shall uphold the laws and standards governing my profession.
- I shall strive to perfect and enlarge my knowledge to contribute to the advancement of pharmacy and public health
- I shall follow the system, which I consider best for pharmaceutical care and counselling of patient
- I shall endeavour to discover and manufacture drugs of quality to alleviate (decrease the effect) suffering of Humanity

Q) Explain in detail about Hathi and Mudaliar Committee?

A) The Hathi Committee was established by the Indian Government in 1974 to study the drug and pharmaceutical industrial in India

Purpose

The committee was formed to address the government's concerns about the growing drug industry and to ensure the essential drugs were available to customers at reasonable price

Member

- The committee was chaired by Saizukhlal Hattia former member of Parliament and constituent assembly
- It also included other members of parliament as well as officials and non-officials

Tasks

- Recommending measures to promote the growth of the drug industry
- Examining arrangements for integrating new technology into the industry
- Recommending measure for GS of drugs and development of indigenous industries
- Controlling the price of drugs

Mudaliar Committee - 1962

- In 1959 the Government of India appointed another committee known as "Health Survey & Planning Committee" popularly known as Mudaliar Committee
- Dr A.L. Mudaliar as Chairman to survey the progress made in the field of Health since submission of the Bhoré Committee's Report and to make recommendations for future development and expansion of Health Care

- Main recommendation of the Mudaliar Committee were:-
- Consolidation of advances made in the first two five year plans
 - Strengthening of the district Hospital with specialist services to serve as central base of regional service
 - Regional organization in each state is placed b/w the Headquarter organization and the district as Regional Deputy or Assistant Directors to supervise 2-3 District Medical and Health Officers
 - Each PHC should not serve more than 40,000 population
 - Integration of medical and Health service and improve the quality of Health care provided by PHC
 - Constitution of an All India Health Service on the pattern of Indian Administrative Service